
Browick Road Primary & Nursery School Audit Report**Date: 27 February 2020****Report: Year 2 visit 2****DPE: Linda Mortimer****Headteacher: Pauline McMullan / GDPR Governor: Bonnie Dillaway**

1. Visit details

Details highlighted at the time of the last visit were discussed and GDPR documents and policies were reviewed. The school is progressing with completion of Compliance Checklists and uses the DPE Best Practice areas for resources and standard model policies. At the time of the next audit, LM will work with the School Secretary to demonstrate; the SLA tool, Record of Processing tool and Compliance Manager for uploading policies and guidance for staff. The themed audit carried out by NCC in Summer Term 2019 was also talked through (refer to section 6 below) as well as when the need arises for completing a Data Protection Impact Assessment (DPIA), (refer to section 5.1 below).

Review actions recommended at time of previous visit – 3.10.19

All actions highlighted at the time of visit on 3.10.19 have been considered by the school and the majority have been implemented. Please note the following observations made on 27.2.20 in respect of the report from 3.10.19:

GDPR Best Practice Checklists and Compliance Manager: The school is making progress in completing the checklists. LM will work with the School Secretary and GDPR Governor to build on this progress at the time of the next meeting in Summer/Autumn 2020. Compliance Manager will be also be demonstrated to allow key documents to be shared.

Staff Training: All staff have now completed GDPR training. GDPR training is included in staff induction. The GDPR Governor is a DPO for an independent charity and has therefore received training, although she may complete the DPE online GDPR Module 1.

GDPR Policy: 'School to update wording on the website to reflect the 2018 data protection act (GDPR)' At the time of the meeting the Headteacher made the necessary amendments to the GDPR Policy. The updated version of the Cluster's GDPR Policy will be published under the dedicated GDPR section on the school's website. All references will be made to the General Data Protection Regulation 2018, which came into force on 25 May 2018.

Action: Headteacher will present the amended GDPR Policy to Cluster Head's meeting on 19.3.20 for their consideration.

Privacy Notice: The school will publish the Cluster's Privacy Notice on the school's website under the dedicated GDPR section.

Action: LM will liaise with the Cluster Administrator based at Robert Kett, to obtain the most up to date Cluster Privacy Notice.

Action: Cluster Administrator to amend Cluster's Privacy Notice to include a detailed list of third parties with whom the Cluster schools share PII data.

DPE recommend that the following policies which are all available via Knowledge Bank, are adopted by the school and where appropriate, shared with staff via the Compliance Manager:

- Records Management Policy
- Information Classification Policy
- Clear Desk and Screen Policy
- Working away from School Policy

- Photo and Video Guidelines

FOI Policy: This policy has been adopted since the last visit and is now published on the school's website.

Action: The school's GDPR Governor will compare the school's current FOI Policy with the DPE model FOI Policy.

FOI Publication Scheme: The school queries whether this should be completed at a Cluster level.

Action: The Headteacher will discuss at the next Cluster Headteacher's meeting in March 2020.

Retention Schedule: DPE recommend that the school uses the IRMS Toolkit and this can be shared with relevant staff ie school secretary via Compliance Manager.

Website & Server: Cleansing of out of date information / images. This is ongoing and the school ensures that they comply with their retention schedule. The school is now moving towards implementing Office 365 which will mean that documents will be retained in the Cloud. The school is changing its website provider to Creative Corner and this will involve a thorough review of current website content.

Audit walk findings on 27.2.20

Staff Training – for information: A GDPR 20-minute refresher course will be available shortly on Knowledge Bank. DPE recommend that staff should refresh their GDPR general training every 2 years. There are a number of bite size courses now available on Knowledge Bank. New staff should complete the DPE GDPR 101 modules.

Naming convention: All work trays, class lists, displays and coat pegs use first name only. Most exercise books currently display first name and surname.

Action: From September 2020 exercise books will display first name only.

Parent Communication, Cashless Catering and Online Payments: Are all managed through Parentmail.

Management of Safeguarding / SEND Documents: School does not use a cloud-based system and relies on hard copy records and reports. These are retained securely in locked cupboards with restricted access. The Headteacher and SENDCo can also access electronic records which are held on a secure area of the server.

Management Information System: The school uses Scholar Pack, recommended by NCC. Previously used SIMS.

Laptops: Are encrypted, password protected and accounted for on a regular basis. Following discussions at staff meetings all staff are aware of the Working Away from School guidance.

Action: School to share the Working Away from School Policy with all staff. This can be actioned via Compliance Manager on Knowledge Bank.

iPads: Are password protected and accounted for on a regular basis. EYFS and Reception class use Tapestry as an online platform. Images are uploaded to Tapestry and deleted on a weekly basis. Regular cleansing of student images from teachers iPads takes place. If images are to be retained, they are uploaded to a secure area of the server.

Action: School to check with IT Technician that iPads have 'Find my iPad' and 'Return to Factory Settings' installed.

Cameras: There is a protocol in place for using school cameras and staff are aware of the Photo & Video guidelines. These guidelines can be found on Knowledge Bank and shared with staff via Compliance Manager.

School Kitchen: Operated by Norse Catering. All allergy information is kept securely.

Staffroom: On inspection of staff pigeonholes, completed photo consent forms were found and also performance management paperwork.

Action: Remind staff to regularly remove all paperwork from pigeonholes, as well as the risks involved if such paperwork containing PII data is not stored securely.

First Aid Records and Medical Student Care Plans: Are displayed in the First Aid room, but not outward facing. Medical Care Plans are retained in the classrooms and stored securely.

School Server: The server is located in a dedicated room. Server back-ups are managed by the IT Technician and regularly backed up to 'Red Store', a cloud-based facility.

Action: The school is to introduce a robust procedure for cleansing out of date information and student images from the school server.

Library: Class list on the wall, detailing first name and surname for students taking part in music lessons.

Action: Remind staff to use first name only if list is to be on clear display.

Year 4 Classroom: Laptop left unlocked. Cupboard door unlocked and student Care Plan left out on clear display.

Action: Lock computers when left unattended and ensure cupboards and left secure. Always ensure that Care Plans are retained securely.

Year 5 Classroom: Reading book list on the wall, detailing first name and surname.

Action: Remind staff to use first name only if list is to be on clear display.

Nursery Class Kitchen: Photo permission list, detailing first name and surname.

Action: Remind staff to use first name only if list is to be on clear display.

2. Compliance actions that should now be completed

Initial documents:

- Privacy Notice
- GDPR Policy
- Data Breach Procedure
- SAR procedure
- Photo and Video consent, guidelines and records

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

2.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- DfE Toolkit

https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf (Annex 5,1)

2.2. Staff training

GDPR training has been completed and documented for the majority of staff. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

2.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

2.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

3. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

4. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

5. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

5.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

6. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>